

#	Case Name	Tentative Ruling
101	Carranza v. Corbin Reeves Construction, 2025-01520792	KURT FISCHER STRUCTURAL ENGINEERING/WAVERING'S DEMURRER TO COMPLAINT MA3 CORP./REEVES DEMURRER TO COMPLAINT MOTION TO STRIKE COMPLAINT CONTINUED to 08/31/2026 to allow meet and confer.
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105	Hodges v. Fillman, 2024-01442297	MOTION TO CONSOLIDATE – DENIED Plaintiffs/cross-defendants George Thomas Hodges, Jr. and Jane Wong (“Plaintiffs”) move for an order consolidating this action with Michael P. Fillman, et al., v. George Thomas Hodges, Jr., et al., Case 30 2025- 01522929-CU-NP-CJC (the “Fillman Action”). The court previously determined that the cases were not related. When there are actions involving common questions of law or fact pending, a court may order a joint trial of any or all of the matters in issue in the actions or may order all the actions consolidated, or such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay. (Code Civ. Proc., § 1048(a).)

This action involves nuisance, trespass, and premises liability cross-claims, with each side alleging that the other side caused property damage by water intrusion.

The Fillman Action includes causes of action for invasion of privacy, harassment, trespass, elder abuse, financial abuse of an elder, and declaratory and injunctive relief and is based on allegations that Plaintiffs installed surveillance cameras with audio capability directed at the pool area, stairs, and private outdoor living spaces on property owned by the plaintiffs in the Fillman Action.

Plaintiffs contend consolidation is warranted because the actions arise out of the same series of events and consolidation would avoid unnecessary duplication of the presentation of evidence and witnesses. Plaintiffs argue that because the Fillman Action was filed in response to camera and audio recordings produced during discovery in the instant action, the Fillman Action is intertwined with this matter. Plaintiffs also argue that there is a risk of inconsistent findings if consolidation is not ordered, as one jury could find that Plaintiffs' communications were reasonable efforts to address property damage while another could determine those same communications constitute harassment or elder abuse.

While these actions involve the same parties and arise out of the parties' relationship as neighbors, the claims asserted in each do not involve common questions of law or fact. The Fillman Action claims for invasion of privacy, harassment, and abuse involves issues of whether Plaintiffs' installation of a surveillance camera invaded a right to privacy and subjected their elderly neighbors to mental suffering and harassment to such extent as to constitute elder abuse. These issues are unrelated to Plaintiffs' claims of water intrusion, property damage, and property encroachment. Thus, the Court finds that consolidation would not avoid unnecessary costs or delay and that consolidation is unwarranted.

The Motion to Consolidate is DENIED.

		Moving party to give notice.
106	Le v. CUIAB, 2026-01538470	PETITION FOR WRIT OF MANDATE Petitioner has filed a petition for writ of administrative mandate. No proof of service on the respondent is on file. Petitioner should be prepared to advise the court when and how service was effected, or why it has not been effected.
107	Lee v. Fountain Valley, 2023-01358010	MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION – GRANTED as to the second and third causes of action; no tentative ruling as to the first cause of action. Plaintiff Hye Jin Lee is a Korean-American woman who was hired by the City of Fullerton (the City) on March 9, 2020 as the Director of Public Works. (Undisputed Fact (UF) 1.) City Manager Maggie Le terminated Plaintiff’s employment on May 10, 2023 (UF 69) Plaintiff sued the City for Racial Discrimination, Age Discrimination, and Gender Discrimination in violation of the Fair Employment Housing Act (“FEHA”, Gov. Code, § 12940 et seq.) (Although the caption of Plaintiff’s second amended complaint (SAC) lists a fourth cause of action for wrongful termination, no such cause of action is separately stated.) The City filed a motion for summary judgment and/or adjudication arguing (1) it had legitimate nondiscriminatory reasons for terminating Plaintiff’s employment that were not pretextual, (2) there was no temporal proximity between the City’s employees’ comments and the termination of Plaintiff’s employment, (3) plaintiff cannot show she was replaced by a significantly younger person, and (4) Plaintiff cannot establish evidence of a discriminatory motive as to the gender discrimination claim. Plaintiff filed an opposition brief, and the City filed a reply brief. <u>I. Burden on Summary Judgment in Employment Law Cases</u>